

On 9/16/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions ("Deemed Admitted Order"). All requests for admission, provided in the declaration filed 5/21/25, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Deemed Admitted Order, as well as the declaration filed by the Plaintiff on 5/21/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint involves a subrogation matter where the claim alleges that Defendant was negligent in allowing another individual to operate to her car, and that this individual's operation of the car caused damage to the policy holder.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of her negligence, and that this negligence was the proximate and but-for cause of the damages that amounted to \$2,220.32.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

4. 9:00 AM CASE NUMBER: L24-06199
CASE NAME: BANK OF AMERICA, N.A. VS. ALBERTO VAZQUEZ
***HEARING ON MOTION IN RE: NOTICE OF AND MOTION FOR ORDERSETTING ASIDE AND VACATING ITSPRIOR ORDER OF DISMISSAL AND FORENTRY OF JUDGMENT PURSUANT TO STIPULATION OF THE PARTIES**

FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was served with process via substitute service. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$12,410.34, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$4,700.

Costs are \$466.39, per stipulation, plus additional costs of \$450.11, that are itemized in the accompanying Declaration.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$8,626.84.

Plaintiff to file order on Motion, as well as submit Judgment.

**5. 9:00 AM CASE NUMBER: L25-01481
CASE NAME: LVNV FUNDING LLC VS. JACLYN ELLSWORTH
*HEARING ON MOTION IN RE: TO SET ASIDE JUDGMENT
FILED BY: ELLSWORTH, JACLYN
TENTATIVE RULING:**